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Case Number: 24NWCV00312 Hearing Date: July 17, 2026 Dept: P

CHRISTINA BERMUDEZ v. ROSE MEAT SERVICES, INC., ET AL.

CASE NO.: 24NWCV00312

HEARING: 07/17/2026 @ 9:30 AM

#16

TENTATIVE ORDER

Plaintiff Christina Bermudez's motion for leave to amend
is DENIED.

Moving party to give notice.

Plaintiff Christina Bermudez (Plaintiff) moves for leave to
file a first amended complaint (FAC).

Background

On January 30, 2024, Plaintiff Christina Bermudez filed
this sexual harassment action against Defendants Rose Meat Services, Inc. (Rose
Meat), Employee Force Provider, Inc. (EFP), and Does 1 through 10
(collectively, Defendants). The complaint alleges the following: Defendants
employed Plaintiff from September of 2021 through May of 2023 and throughout
the course of the employment, "Defendants' managing agents and/or supervisors,
including Fernando and Fidel, sexually harassed Plaintiff by initiating unwanted
sexual advances and visual and verbal conduct of a sexual nature." (Complaint, ¶¶

16-17.) Part of the workplace culture included Fernando and Fidel leering at female employee's buttocks and making comments. (Complaint, ¶ 18.) Fernando and Fidel sexually harassed Plaintiff through "(a) remarks such as 'I would like to have your legs over my shoulders,' (b) inappropriate comments about the size of Ms. Bermudez's buttocks, (c) unwanted persistent sexual advances from Fernando, and (d) requests for sex from Fernando, such as 'say you want to go home early, let's get a room.'" (Complaint, ¶ 19.) The complaint alleges that when Plaintiff reported Fernando's conduct as to her and other female employees to Defendants' management in late December of 2022, Defendants fired Plaintiff and other female employees. (Complaint, ¶ 21.)

The complaint asserts eight causes of action: (1) Sex and/or Gender Discrimination (Gov. Code, §§ 12940, et seq.); (2) Sexual Harassment (Gov. Code, §§ 12940, et seq.); (3) Retaliation for Opposing Sex and/or Gender Discrimination and Harassment (Gov. Code, §§ 12940, et seq.); (4) Failure to Prevent Discrimination, Harassment, and Retaliation (Gov. Code, §§ 12940, et seq.); (5) Gross Negligence; (6) Negligence Per Se; (7) Negligent Hiring, Supervision, and Retention; and (8) Wrongful Termination in Violation of Public Policy.

On May 5, 2026, the Court denied Rose Meat's motion for summary judgment. The Court granted in part and denied in part Rose Meat's motion for summary adjudication. The Court granted Rose Meat's motion for summary adjudication as to the first and sixth causes of action and claim for punitive damages.

On May 20, 2026, Plaintiff filed the instant motion for leave to amend her complaint.

Legal Standard

"The court may...in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473 subd. (a).)

California Rules of Court, rule 3.1324(a) provides: "A motion to amend a pleading before trial must:

(1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;

(2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and

(3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located."

California Rules of Court rule 3.1324(b) requires a separate declaration accompany the motion. The separate declaration must include: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when facts giving rise to the amended allegations were discovered; and (4) the reasons the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(b).)

"If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (Morgan v. Superior Court of California (1959) 172 Cal.App.2d 527, 530.)

Discussion

Plaintiff moves for leave to file a FAC. Plaintiff moves on the grounds that Plaintiff's prior counsel failed to include a standalone cause of action for pregnancy discrimination despite exploring Plaintiff's pregnancy during discovery.

In compliance with California Rules of Court rule 3.1324(a), Plaintiff submits a redlined copy of the proposed FAC. (Ranen Decl., ¶ 2, Exh. A.) Plaintiff argues that the proposed FAC seeks to add allegations regarding Plaintiff's pregnancy, Defendants' knowledge of the pregnancy, pregnancy-related accommodations requests, and Defendants' conduct after learning Plaintiff was pregnant. Plaintiff also shows that the proposed FAC seeks to add a cause of action for pregnancy discrimination under FEHA. (Ranen

Decl., ¶ 4.)

As to California Rules of Court rule 3.1324(b), Plaintiff's counsel states that "the omission of a separate cause of action for pregnancy discrimination was not the result of any strategic decision, but instead was an inadvertent pleading omission by prior counsel;" however, Plaintiff's counsel explains that "[u]pon recognizing that the Complaint did not expressly include a standalone pregnancy discrimination claim, Plaintiff promptly took steps to seek leave to amend. (Ranen Decl., ¶¶ 4-5.)

Plaintiff argues that Defendants cannot establish prejudice because they already conducted discovery regarding Plaintiff's pregnancy. Plaintiff argues that despite the omission of the cause of action, Defendants conducted depositions and engaged in written discovery in which they inquired about Plaintiff's pregnancy and pregnancy disclosure. Plaintiff points to certain discovery, including special interrogatories, nos. 47, 49, 50, and 52, in "which Plaintiff disclosed detailed allegations concerning her pregnancy disclosure, pregnancy-related adverse employment actions, negative comments regarding her pregnancy, and Defendants' alleged failure to address pregnancy-related work-duty concerns." (Ranen Decl., ¶ 9, Exh. E.)

In opposition, Rose Meat argues that Plaintiff unreasonably delayed in bringing this motion, Rose Meat would be severely prejudiced if Plaintiff is allowed to amend the complaint, and that amendment would be futile.

Rose Meat emphasizes that Plaintiff is seeking this amendment three weeks before trial after being aware of this claim and expressly disclaiming a pregnancy discrimination claim throughout this litigation. Rose Meat argues that Plaintiff is improperly bringing this motion after the Court's ruling on Rose Meat's motion for summary adjudication.

"Although leave to amend should be liberally granted, the trial court has discretion to deny it when a party unreasonably delays making the request." (Champlin/GEI Wind Holdings, LLC v. Avery (2023) 92 Cal.App.5th 218, 224.) "Unreasonable delay may be found where a plaintiff...seeks leave to amend only after the defendant...moves for summary judgment on grounds addressed by the proposed amendment and the proposed amendment is based on facts previously known to the plaintiff. [Citation.] 'It would be patently unfair to allow plaintiffs to defeat [the] summary judgment motion by allowing them to

present a “moving target” unbounded by the pleadings.” (Ibid., citations omitted.)

Rose Meat cites to a January 16, 2024 pre-litigation demand letter showing that Plaintiff was aware of these claims prior to commencing this action. (Vásquez Decl., ¶ 3, Exh. A.) Rose Meat additionally points out that Plaintiff substituted in her current counsel on January 16, 2026, months before her opposition to Rose Meat's motion for summary adjudication was due. Rose Meat refers to *Fisher v. Larsen* (1982) 138 Cal.App.3d 627, 649, in which a Court of Appeal found that a trial court was within its discretion in denying leave to amend after a plaintiff knew about a pending summary judgment motion but did not seek leave for to amend for five months. Rose Meat argues, and the Court agrees, that Plaintiff's delay is worse than that in *Fisher* as Plaintiff waited until after the Court ruled on the motion for summary judgment to move for leave.

In reply, Plaintiff argues that the delay is not unreasonable because it was based on an inadvertent error by prior counsel and any delay should only be measured based on current counsel. As shown by Defendant, Plaintiff's current counsel was substituted in two months before Plaintiff's opposition was due and three months before the hearing on the motion for summary judgment. Plaintiff's counsel states she discovered prior counsel's omission of the claim “while preparing Plaintiff's opposition.” (Reply, 5:26.) Plaintiff does not explain why Plaintiff's counsel did not seek a continuance or leave to amend prior to the hearing on the motion for summary judgment so as to get a ruling based on all Plaintiff's purported claims.

Rose Meat further argues that it will be “extremely prejudiced” if amendment is permitted because trial is three weeks away, the Court has ruled on the motion for summary adjudication, experts have been designated, discovery has closed, and the parties have filed their motions in limine. (Opp., 7:11-14.) Rose Meat argues that because Plaintiff never pled pregnancy discrimination, Rose Meat was deprived of the opportunity to move for summary adjudication as to the claim.

Moreover, Rose Meat provides evidence that it relied on Plaintiff's representations that she is not alleging a pregnancy cause of action. Rose Meat refutes that it has obtained pregnancy-related discovery and argues that any discovery was related to the timing of the pregnancy. Rose Meat points to its requests for production and interrogatories inquiring into

Plaintiff's pregnancy and Plaintiff's objections in response. (Vásquez Decl., Exhs. B, C, D.) Rose Meat additionally points to Plaintiff's meet and confer correspondence on July 16, 2024, regarding Plaintiff's objections, explaining "[t]hese interrogatories expressly apply to disability discrimination claims only. Plaintiff has not alleged a disability discrimination claim here. To be clear, Plaintiff's pregnancy discrimination claim derives from her sex/gender discrimination claim." (Vásquez Decl., Exh. E.)

Third, Rose Meat argues that the amendment would be futile as pregnancy was addressed in the Court's ruling on motion for summary adjudication finding that Plaintiff's "termination was based on legitimate, nondiscriminatory factors." (Order, 5/5/26.)

Here, the Court finds that Plaintiff unreasonably delayed in proposing this amendment without justification and that the delay is unduly prejudicial to Rose Meat. First, while Plaintiff claims that her prior counsel inadvertently failed to allege a pregnancy claim, Rose Meat's showing of the pre-litigation demand letter and meet and confer correspondence show that Plaintiff, under prior counsel, expressly disclaimed a stand-alone pregnancy claim. Even if the Court measures delay based on the substitution of counsel, Plaintiff's current counsel substituted into this action over three months before the hearing on the motion for summary adjudication and discovered this omission while writing an opposition. Seeking leave to amend at that time could have permitted Rose Meat to re-file a motion for summary judgment based on all the claims before the current trial date. However, allowing the summary judgment hearing to proceed and moving to amend afterwards turns Plaintiff's claims into a "moving target." (Champlin/GEI Wind Holdings, LLC, *supra*, 92 Cal.App.5th at p. 224.)

While Plaintiff's arguments regarding pregnancy being addressed in discovery could mitigate a finding of prejudice, Rose Meat's evidence refutes that it was able to get meaningful discovery from Plaintiff on the issue. Rose Meat shows that Plaintiff either objected to pregnancy-related discovery, included the same statement regarding pregnancy that was in the pre-litigation demand letter, or expressly disclaimed that Plaintiff had a pregnancy-related cause of action. The evidence here shows that Plaintiff's pregnancy claim was raised in a pre-litigation demand letter, disclaimed throughout the actual litigation, and only raised for the first time in the weeks before the scheduled trial date. The Court finds that Rose Meat was entitled to rely on Plaintiff's comments disclaiming a pregnancy claim during

the litigation of this action, including in bringing a dispositive motion. Permitting the amendment now would thus unfairly prejudice Rose Meat by requiring additional discovery and a trial continuance after an unreasonable delay in which it was led to believe that Plaintiff would not bring the claim.

Accordingly, Plaintiff's motion for leave to amend is
DENIED.